

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Esther Chi-Hsin Hsia	Team: Squad #06	CCRB Case #: 201410955	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/21/2014 1:00 PM	Location of Incident: Inside the 75th Precinct stationhouse	18 Mo. SOL 4/21/2016	Precinct: 75		
Date/Time CV Reported Mon, 10/27/2014 2:20 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 10/27/2014 2:20 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POF Jean Seder	17886	945720	075 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Georin Duran	26108	950361	075 PCT		
2. SSA Gary Calhoun	00622	903537	075 PCT		
Officer(s)	Allegation		Investigator Recommendation		
A . POF Jean Seder	Abuse: PO Jean Seder strip-searched § 87(2)(b)		A . Unsubstantiated		
§ 87(4-b) § 87(2)(g)					

Case Summary

On October 27, 2014, § 87(2)(b) filed this complaint with the CCRB in person (encl. D1).

On October 21, 2014, § 87(2)(b) was arrested during a SNEU operation and made no allegations pertaining to the initial arrest. Sgt. Gary Calhoun and PO Jean Seder transported § 87(2)(b) back to the 75th Precinct stationhouse, at which point PO Seder strip-searched § 87(2)(b) in the general cell area (**Allegation A**). § 87(4-b) § 87(2)(g)

§ 87(2)(g)

Mediation, Civil, and Criminal Histories

Mediation was not presented to § 87(2)(b) due to the fact that an arrest was effected. A check of Notice of Claim was filed and is still pending at the time of this report (encl. I16-17). § 87(2)(b) [§§ 86(1)(3)&(4)] § 87(2)(c)

Civilian and Officer CCRB Histories

- § 87(2)(b) has no previous CCRB complaints (encl. C1).
- During PO Seder's seven-year tenure, she has had eight allegations pleaded against her, which involved four cases. Three of the cases involved search and strip-search of persons, with no substantiated dispositions. § 87(2)(g), § 87(4-b) (encl. B1).

Findings and Recommendations

Explanation of Officer Identification

PO Seder was identified through the 75th Precinct ARCS as the only female officer on the SNEU team (encl. G10). Her presence at the scene of arrest was further confirmed by PO Georin Durin, who was the arresting officer (encl. F12-14). It was subsequently established through PO Seder's and PO Duran's testimonies that Sgt. Calhoun was present at the scene (encl. F5-8; F12-14).

Allegation A – Abuse of Authority: PO Jean Seder strip-searched § 87(2)(b)

It is undisputed that as the only female officer on the team, PO Seder conducted the frisk and the search of § 87(2)(b) on the scene. § 87(2)(g)

PO Duran confirmed that prior to calling § 87(2)(b) out via radio, he observed her exchanging U.S. currency with a known drug dealer in the area (encl. F12-19). Upon being stopped, PO Samuel Carey observed § 87(2)(b) discarding a glassine envelope, which was confirmed in the supporting deposition and narcotics fact sheet completed by PO Carey, as well as PO Duran's testimony (encl. G1-4; F12-14). Although the content was not immediately evident, PO Duran confirmed that the officers were certain that it contains heroin because of the packaging (F12-14).

§ 87(2)(a) 160.50, [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

However, PO Seder confirmed that she did not remember that § 87(2)(b) had made any suspicious movements on scene or while en route to the 75th Precinct stationhouse. PO Duran also confirmed that no such information was relayed to him. § 87(2)(g)

§ 87(2)(b) s specified that she was strip-searched in the cell area, for which a male officer was also present (encl. E1-3). PO Seder admitted to conducting a standard search in the cells, yet specified that the female and male holding cells are separated in the 75th Precinct stationhouse; further, PO Seder did not remember any other officers present for the search (encl. F5-8). It was determined through the prisoner holding pen roster that no other prisoners were in the same cell as § 87(2)(b) and the cell attendant was a female officer, PO Tiara Campbell.

Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Investigator:	_____	_____	_____
	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date